Sample Template for PSEA Policy

[The below template is available to support organisations in developing their own organisational documentation to ensure policies and systems are in place to prevent and respond to sexual exploitation and abuse and safeguarding violations. While the use of templates is encouraged, it is important to make sure that their content is adapted to and appropriate for the organisation's structure, dynamics, context and intended users/audience. PSEA systems and documentation that do not reflect the specific dynamics of a context or organisation will not be understood or used adequately and may cause more harm.

While the templates presented here are exclusively intended to support CSOs to meet their PSEA obligations, organizations can also expand to cover other components, such as Sexual Harassment and / or safeguarding, depending on the scope of their internal policies. The templates do not necessarily need to be stand-alone can also be integrated to broader internal procedure manuals.]

Policy title: Protection from Sexual Exploitation and Abuse
Policy objective:

1. To establish a policy of zero tolerance for sexual exploitation and abuse (SEA) for all [Organisation] employees and related/associated personnel and ensure that roles, responsibilities and expected standards of conduct in relation to SEA are known within [Organisation].
2. To create and maintain a safe environment, free from SEA, by taking appropriate measures for this purpose, internally and in the communities where [Organisation] operates, through robust prevention and response work.
3. To establish the foundational framework of [Organization] to prevent sexual exploitation and abuse and take corrective action when an sexual exploitation and abuse incident occurs.

Targeted Audience: All [Organisation] employees and related personnel.
Effective Date: xx.xx.xxxx
Mandatory Revision Date: xx.xx.xxxx

1. Policy statement

1.1 *SEA* violates universally recognised international legal norms and standards and are unacceptable behaviors and prohibited conduct for all humanitarian workers, including [Organisation] employees and related personnel.[1]

1.2 [Organisation] has a policy of zero tolerance towards SEA. All [Organisation] employees and related personnel[2] are expected to uphold the highest standards of personal and professional conduct at all times, and to provide assistance and services in a manner that respects and fosters the rights of beneficiaries and other vulnerable members of the local communities.

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[1] UN Secretary General's Bulletin ST/SGB/2003/13, 2003. https://undocs.org/en/ST/SGB/2003/13

[2] The term "related" personnel include, for example, sub-contractors, consultants, interns or volunteers associated with or working on behalf of the [Organisation].

1.3 [Organisation] is fully committed to have an approach to prevent and respond to SEA that is rights-based, age, disability-and gender sensitive, non-discriminatory and culturally appropriate, and victim-centric should an SEA allegation occur.

2 Scope of application

2.1 This policy sets out [Organization] approach to prevent and respond to SEA. Employees and related personnel of [Organisation] include, without being limited to: international and locally recruited staff members, daily labourers, consultants, interns, volunteers /incentive workers, and contractors.

2.2 The policy also applies to all activities and operations of [Organization], including any project funded by [Organisation], any project implemented by [Organization], and any cooperating partner."

2.3 The policy extends to situations of SEA which occur at or away from the workplace, during or outside working hours.

3 Definitions[3]:

For the purposes of the present policy:

3.1 The term '**sexual exploitation'** means any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially or politically from the sexual exploitation of another.

3.2 The term **'sexual abuse'** means the actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

3.3 'Sexual Exploitation and Abuse" (SEA) is the abuse or attempted abuse of a position of vulnerability, differential power or trust for sexual purposes or the actual or threatened physical intrusion of a sexual nature by UN personnel, their implementing partners or other aid workers, against the people they serve

4. Commitment to PSEA:

4.1 [Organisation] will make every effort to create and maintain a safe environment, free from SEA, and shall take appropriate measures for this purpose in the communities where it operates, through a robust PSEA framework, including prevention and response measures.

4.2 This PSEA framework, affirms [Organisation] commitment to the UN Secretary General's Bulletin on Special Measures for protection from sexual exploitation and sexual abuse (ST/SGB/2003/13) and to achieving full, ongoing implementation of the IASC Six Core Principles relating to SEA[4].

5. Six core principles[5]:

[3] Both definitions are adopted from the Secretary General's Bulletin ST/SGB/2003/13, 2003. https://undocs.org/en/ST/SGB/2003/13

[4] IASC Six Core Principles; available at: https://interagencystandingcommittee.org/inter-agency-standing-committee/iasc-six-core-principles-relating-sexual-exploitation-and-abuse.

[5] Modified for the purposes of this PSEA policy. *These acts are not intended to be an exhaustive list.*

5.1 SEA by [Organisation] employees and related personnel constitute acts of gross misconduct and are therefore grounds for termination of employment[6].

5.2 Sexual activity with children (persons under the age of 18) is prohibited regardless of the age of majority or age of consent locally. Mistaken belief regarding the age of a child is not a defense.

5.3 Exchange of money, employment, goods, or services for sex, including sexual favors or other forms of humiliating, degrading or exploitative behavior is prohibited. This includes exchange of assistance that is due to beneficiaries.

5.4 Any sexual relationship between [Organisation] employees or related personnel and beneficiaries of assistance or other vulnerable members of the local community that involves improper use of rank or position is prohibited. Such relationships undermine the credibility and integrity of humanitarian aid work.

5.5 Where an [Organisation] employee or related personnel develops concerns or suspicions regarding sexual abuse or exploitation by a fellow worker, whether in the same organisation or not, he or she must report such concerns via established reporting mechanisms.

5.6 All [Organisation] employees and related personnel are obliged to create and maintain an environment which prevents SEA and promotes the implementation of this policy. Managers at all levels have particular responsibilities to support and develop systems which maintain this environment.

6 PSEA framework

6.1 The below PSEA framework shall be operationalised in a way that is adapted to the context, dynamics and organisational structure of [the Organisation]. The relevant measures shall be reflected, as necessary, in the relevant organisational policies and procedures.

6.2 As appropriate, [the Organisation] will consult with beneficiaries and local communities, including at-risk groups as identified by [the Organisation], to ensure that the systems put in place and measures taken for the prevention and response to SEA are sensitive to the vulnerabilities and needs of beneficiaries and culturally appropriate.

6.3 Integration of PSEA into planning, programming and operational processes

6.3.1 [The Organisation] ensures that risks of sexual exploitation and abuse are properly assessed, addressed and monitored through integrating PSEA into its planning, programming and operational processes (e.g. strategic planning, budgeting, programme cycle management) and allocates sufficient human and financial resources.

6.3.2 [The Organisation] conducts thorough and inclusive risk analysis and assessments on SEA while designing projects and programme activities with mitigation measures, and identifies the groups that are the most marginalised and at heightened risk of SEA. This may include site safety mapping, focus group discussions with intended beneficiaries and other stakeholders (including women, children, local authorities/communities, etc.) and other relevant research methods.

[6] Including all other forms of contractual agreements, such as for example volunteer assignment.

6.4 Recruitments

6.4.1 [The Organisation] has safe and PSEA-sensitive human resources practices and processes in place during recruitment, contracting and performance management.

[Note: The section 6.4.2 to 6.2.6 can be either included in the PSEA policy and/or in the HR manual of the organisation or any other relevant internal procedure"]

6.4.2 Job announcements: [The Organisation] explicitly states in a standard paragraph in its job announcements its zero-tolerance policy regarding SEA.

6.4.3 Interviews: As part of the recruitment interviews, [Organisation] asks questions related to ethics and PSEA

6.4.4 Vetting: [The Organisation] systematically vets all prospective job candidates in accordance with established screening procedures, to ensure [The Organisation] does not hire potential employees that would pose a risk to staff and our beneficiaries.

6.4.5 Self-declaration: [The Organisation] asks selected applicants to sign self-declarations committing not to have committed SEA in the past and not to commit SEA in their new role within the organisation.

6.4.6 Employment contracts: [The Organisation] includes a PSEA clause in its employment contracts, clearly establishing the definitions and roles & responsibilities of staff regarding PSEA. These include, but are not limited to, the duty to not commit SEA, to report SEA, and to cooperate in good faith with any investigation or audit related to a SEA case conducted by the organisation.

6.4.7 PSEA Focal Points: [The Organisation] provides designated PSEA focal points with specific terms of reference related to their PSEA roles and responsibilities[7].

6.4.8 HR processes: [The Organisation] aligns its HR processes with its SEA policy to describe the reporting and response mechanism for SEA allegations (disciplinary measures for proven allegations).

6.5 Organisational management - Cooperation agreements:

6.5.1 [The Organisation] includes a standard clause in all its contracts and partnership agreements with its suppliers, contractors, subcontractors and sub-partners requiring them to commit to a zero-tolerance policy on SEA and to take measures to prevent and address SEA.

6.5.2 Where suppliers, partners and contractors do not have appropriate policies and measures in place, [The Organisation] will support them in developing such policies and take such measures, as deemed relevant.

6.5.3 The failure of those entities or individuals to take preventive measures against SEA, to investigate allegations thereof, or to take corrective action when SEA has occurred, shall constitute grounds for termination of any cooperative arrangement.

6.6 Awareness of personnel, including mandatory trainings

[7] UNICEF PSEA Toolkit, Tools #2, p.50 and #3, p.52.

6.6.1 [The Organisation] is committed to ensure that its personnel understand PSEA, are aware of the PSEA systems of the organisation, and are informed of their obligations as well as what actions to take in case of an allegation. In particular, personnel shall be informed of the following:

- A clear prohibition of SEA;
- Definitions of SEA and a clear understanding of behaviors that constitute SEA;
- The obligation of all personnel to report any suspicions or concerns and consequences for failing to report (e.g. disciplinary measures);
- The option of reporting information anonymously;
- The organisation's protections for those who makes an allegation in good faith (e.g. whistleblower policy, protection plans for complainants);
- Details regarding who to report to and what information to share to allow for proper response and follow-up;
- Actions that personnel are required to take (i.e. prompt reporting of allegations and referral of survivors).
- Explanation of how the organisation will use the information (e.g. who will receive the reports and the internal procedure for response and follow-up).

6.6.2 [The Organisation] holds mandatory induction [indicate timeline, i.e. within a month] and refresher trainings [indicate frequency - at least once a year - indicate format - face-to-face preferred or online] for all employees and related personnel on the Organisation's SEA policy and procedures. To do this:

- [The Organisation] develops an annual training plan for all staff, targeting different levels of audiences and participants.
- [The Organisation] keeps record of the attendance of all its personnel to induction and refresher trainings and the updating of the lists of participants.
- [The Organisation] has training materials on PSEA, that are adapted to the type of training provided (induction or refresher) as well as the audience of the training, and ensure opportunities to exchange and discussions among personnel.

6.6.3 In addition to trainings, [The Organisation] takes measures (both in writing and verbally) to ensure that its employees and associated personnel are informed of their PSEA related obligations as well as what actions to take in case of an allegation. This may include, without being limited to, posters, memo, reminder emails, quarterly integration in agenda meetings, etc.

6.7 Reporting:

6.7.1 [The Organisation] has set up safe, confidential and accessible mechanisms and procedures for personnel, beneficiaries and communities, including children, to report SEA allegations that comply with core standards for reporting and ensures that beneficiaries are aware of these. [The Organisation] has mechanisms in place to restrict access to information and keep written reports safely for the security of the survivor and the complainant. Information about an allegation will be shared only on a 'need to know' basis.

6.7.2 [The Organisation] ensures that its reporting mechanisms meet the basic principles of effective

reporting:

- Accessibility[8]
- Responsiveness
- Safety[9]
- Confidentiality
- Transparency[10]

6.7.3 Notification: [The Organisation] provides training to staff likely to receive complaints on the relevant procedures and the alleged incident report[11].

6.7.4 Protection from retaliation: [The Organisation] is committed to uphold a culture of transparency and a safe environment where personnel and beneficiaries can report SEA allegations as soon as possible without any adverse or punitive action being taken against them. The organisation does not tolerate any kind of retaliation, or threat thereof, against anyone who reports a situation of SEA or cooperates in any investigation process related to a SEA allegation. [The Organisation] organisation has safe, confidential and accessible mechanisms and procedures for personnel, beneficiaries and communities, including children, to report any consideration of retaliation against them.

6.7.5 The description of the available reporting mechanisms, mechanisms/procedures to review SEA allegations and associated information sharing protocol are outlined in [annex or separate document]. The SOPs are built on / adapted from the PSEA Network SOPs. *(to be adapted depending on the country)*

6.7.6 Inter-organisational mechanisms[12]: [The Organisation] aligns its internal reporting mechanisms with inter-agency reporting mechanisms where they exist in the country.

6.8 Awareness-raising to beneficiaries and local communities

6.8.1 [The Organisation] is committed to ensure the awareness by its beneficiaries and local communities on PSEA and its organisational PSEA systems. For this purpose, [the Organisation] has visual communication materials for communities and "ready-to-use" awareness raising messages. These materials are:

- Adapted to local context;
- Drafted in the relevant local languages;
- Designed to be easily understood by and accessible to beneficiaries of [the Organisation], especially those groups considered at higher risk of abuse.

6.8.2 [The Organisation] organises regular awareness-raising sessions in the communities in which activities are implemented, to provide information on:

- What PSEA is
- The standards of conduct that apply to the organisation's personnel
- How to make a report
- The commitments from the organisation to response to SEA incidents.

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[8] For more information on child-friendly complaint mechanisms, see UNICEF, *Child-friendly Complaint Mechanisms*.

[9] UNICEF PSEA Toolkit, Section 6.2, p.33 – Assistance and Referrals

[10] UNICEF PSEA Toolkit, Section 5.3, p.32 -Reporting of allegations to UNICEF

[11] UNICEF PSEA Toolkit, Tools #8, page 65 - Sample of SEA allegations incident report form.

[12] Optional: *to be adapted depending on the country.*

6.9 Assistance to SEA victims/survivors

6.9.1 [Organisation] is committed to ensure that any victims of SEA has access to assistance and support as soon as information about an allegation is received, regardless of (i) the [Organisation] decision to investigate the case by the organisation, (ii) the outcome of the investigation and (iii) irrespective of whether the victim cooperates with an investigation or any other accountability procedure.

6.9.2 Assistance and support shall be provided by skilled and competent service providers in line with the "do no harm" and victim-centered approach, in full respect of the rights and best interests of victims and with respect to Gender-Based Violence key principles, especially informed consent. Services shall be rights-based, age, disability-and gender sensitive, non-discriminatory and culturally appropriate and ensure the best interest of the child. Support and assistance shall entail

(a) Provision of safety measures to protect against retaliation, secondary victimisation and re-traumatisation,

(b) Services including, without being limited to, immediate medical and health care, dignity kits, mental health and psychosocial support, legal services, basic material assistance and support to children born as a result of SEA.

6.9.3 To do this, the organisation has:

- An up-to-date list of local service providers with options for child and adult survivors where appropriate, along with the types of services offered. Such list is built and/or adapted on the service mapping carried out by the inter-agency coordination group (GBV/Child Protection), present in the country.[13]
- A defined and articulated system and process described in its standard operating procedures (SOPs) on referrals and victim support as detailed in [XX – annex or separate document]. The SOP includes information-sharing protocols to respect the complainant privacy, confidentiality, safety and security. The SOPs are built on / adapted from the PSEA Network SOPs. *(to be adapted depending on the country)*
- Referral forms

6.10 Investigations

6.10.1 Investigations: [The Organisation] has a process for investigating SEA allegations in place and shall properly and promptly conduct the investigation of any SEA situation reported to it and committed by its employees or associated personnel or refer to the appropriate investigative body if the perpetrator is affiliated with another entity. The procedures for investigations management and process will be detailed in a separate document.

6.10.2 Referral to national authorities: If, after proper investigation, there is evidence to support allegations of SEA, these cases may be referred to national authorities for any appropriate action, including criminal prosecution. Informed and voluntary consent of the victim shall be sought prior to any referral to national authorities.

6.10.3 Corrective action: The person or team responsible for investigating SEA allegations will make recommendations for improvement so that [the Organisation] can reduce the recurring risk of

[13] Optional: *to be adapted depending on the country.*

any misconduct. The management of the organisation is in charge of reviewing and implementing these recommendations; such changes brought to the organisation's PSEA systems will be communicated to the personnel as relevant.